

22STCV34970 22STCV34970

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-09-24

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Case Number: 22STCV34970 Hearing Date: September 24, 2026 Dept: 734

Defendant Nicolas P. Bru brings

two ex parte applications. The first

seeks a continuance of the trial and trial-related deadlines; the second seeks

a shortening of time on the hearing for Defendant's motion for summary

judgment, which is currently set for hearing on October 6, 2026. The Court has considered the applications and

finds the matters suitable for decision in chambers without argument.

The application for an order

shortening time on the motion for summary judgment is DENIED. Absent a stipulation of all parties, a court

cannot "shorten time" on a motion for summary judgment, which has an inflexible

mandatory notice period. (McMahon v.

Superior Court (2003) 106 Cal.App.4th 112, 115.) Where a party serves notice of a hearing on a

motion for summary judgment motion that does not comply with the timing requirements

of section 437c, that notice is void. (See

Robinson v. Woods (2008) 168 Cal.App.4th 1258, 1267-68 ("Defendants noticed

their motion for hearing within 30 days of the trial date without first

obtaining a determination of good cause from the trial court. (See §

437c, subd. (a).) Unless and until the trial court found good cause, the notice

of the hearing was invalid.".) Defendant filed and served a motion for

summary judgment on July 13, 2026 with a hearing date of August 27, 2026—less than

81 days notice. The notice was therefore

invalid when served. Robinson

teaches that a court cannot save defective (i.e., too short) notice of a

summary judgment hearing by continuing the hearing date, unless the notice

period begins anew. (Robinson,

168 Cal.App.4th at 1268.) Therefore, granting

the ex parte application to advance the hearing would be futile.

The application for a trial continuance is GRANTED IN PART. The Court vacates the October 19, 2026 final status conference and November 2, 2026 trial dates, and sets a trial setting conference on January 4, 2027 at 8:30 a.m. The discovery and motion cutoffs shall be extended and calculated by reference to the new trial date once set. Defendant may reschedule the motion for summary judgment via CRS to a date that provides sufficient time for the minimum notice period of section 437c.

Moving party to give notice.